

Ashok Kumar Jaiswal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 October 2022 · WRIT - C No. 28279 of 2022 · **Writ disposed; petitioner directed to file Clause 6.5 objection; demand notice dated 26.08.2019 kept in abeyance for two months or until the Executive Engineer decides, whichever is earlier.**

HEADNOTE

A dispute about computation of an electricity bill is to be raised by objection before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. The writ is disposed of with a direction that if such an objection is filed, the Executive Engineer shall decide all points expeditiously in accordance with law, preferably within four weeks. The demand notice dated 26.08.2019 is kept in abeyance for two months or until that decision, whichever is earlier; default in filing the objection leaves the licensee free to proceed.

FACTUAL SUMMARY

Ashok Kumar Jaiswal filed Writ-C No. 28279 of 2022 in the Allahabad High Court disputing computation of his electricity bill. The live demand was a notice dated 26 August 2019. Respondents included the State of Uttar Pradesh and the electricity nigan; counsel for the nigan appeared. The petitioner had not yet invoked the Executive Engineer's Clause 6.5 objection pathway. The Division Bench heard the matter on 12 October 2022 and disposed of the writ without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-computation-dispute-relegated-to-clause-6.5

HOLDING

Where a consumer disputes computation of an electricity bill, the remedy is an objection before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. If such an objection is filed, the Executive Engineer is obliged to decide all points of objection expeditiously in accordance with law, preferably within four weeks of receipt. Pending that decision, or for two months from the order, whichever is earlier, the demand notice is kept in abeyance; default in filing the objection leaves the respondents free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging bill computation was disposed of without merits examination and the consumer was directed to the Clause 6.5 objection before the Executive Engineer. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A dispute about computation of the electricity bill was treated as a Clause 6.5 statutory objection to the Executive Engineer, not a writ-court adjudication of the demand. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The Court directed that if the petitioner files a Clause 6.5 objection before respondent no. 5 (Executive Engineer), that officer must decide all points of objection, preferably within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL COMPUTATION AND DEMAND NOTICE DATED 26.08.2019

Writ disposed without examining the bill; relegated to a Clause 6.5 objection. ¶ 1

